

The \$1 Billion Experiment: Comprehensive Research Brief on NCAA NIL Financial Flows, 2021–2026

The NCAA's Name, Image, and Likeness era has produced a **\$2.75 billion annual athlete compensation ecosystem** in just five years — transforming college athletics from an amateur model into what increasingly resembles a professional labor market. This research brief compiles verified data, academic citations, market intelligence, and legal analysis across seven domains to support a scholarly journal analysis of NIL's financial, legal, and institutional impacts from July 2021 through early 2026.

1. Academic Literature Findings

Fully Verified Citations (APA 7th Edition)

NIL Collectives & Tax Status

Romano, R. J. (2023). Shed light on potential risks of signing NIL agreements with hedge fund companies. *College Athletics and the Law*, 20(9), 8. <https://doi.org/10.1002/catl.31255>

- Key finding: Identifies the ~\$1 billion NIL industry and the emerging, unregulated trend of NIL hedge funding. [Wiley Online Library](#)
- Confidence: HIGH

Romano, R. J. (2023). Reevaluate tax status of NIL collectives. *College Athletics and the Law*, 20(6), 8. <https://doi.org/10.1002/catl.31219>

- Key finding: Examines the 501(c)(3) collective model that emerged from the NCAA's Interim NIL Policy. [Wiley Online Library](#)
- Confidence: HIGH

NIL Enforcement

Stein, [first name unconfirmed]. (2023). Expect to see rapid uptick in NIL enforcement. *College Athletics and the Law*, 20(2), 4–5. <https://doi.org/10.1002/catl.31170>

- Key finding: Discusses NCAA's new charging standard for NIL violations effective January 1, 2023. [Wiley Online Library](#)
- Note: Search results attribute this to "Stein" rather than "Stein et al." as originally listed.
- Confidence: HIGH

Marginal Revenue Product & Exploitation

Brook, S. L., & Hellen, M. (2024). Are men's and women's college basketball players "Pigouvian" exploited? *Managerial and Decision Economics*, 45(7), 4753–4762.

<https://doi.org/10.1002/mde.4288>

- Authors: Stacey L. Brook (Dept. of Economics, University of Central Florida) & Michael Hellen (Driehaus College of Business, DePaul University). [Wiley Online Library](#) First published June 17, 2024. [Wiley Online Library](#)
- Key finding: **~25% of men's basketball players and ~10% of women's basketball players** at public D-I universities are Pigouvian exploited (MRP exceeds grant-in-aid compensation). [Wiley Online Library](#) Uses total variable revenue rather than total revenue as methodological innovation. [ResearchGate](#) [Wiley Online Library](#)
- Confidence: HIGH

Antitrust & Labor Law

Ehrlich, S. C., & Ternes, N. C. (2025). The paradox of 'non-union unions': The risks of extending antitrust immunities without labor law's protections. *American Business Law Journal*.

<https://doi.org/10.1111/ablj.12258>

- Authors: Sam C. Ehrlich (Boise State University) & Neal C. Ternes (Northern Illinois University). First published April 24, 2025. [Wiley Online Library](#) Won the ABLJ Excellence in Research Award at the 2025 ALSB. [Boise State University](#)
- Key finding: Examines the extension of collective bargaining rights to non-employee labor groups, relevant to college athletics. [Wiley Online Library](#)
- Confidence: HIGH

Competitive Balance & Applications

McFarland, C., Groothuis, P. A., & Guignet, D. (2024). The role of football win percentage on college applications for Power Five and Group of Five schools. *Contemporary Economic Policy*, 42(3), 474–482. <https://doi.org/10.1111/coep.12642>

- Key finding: For Power Five schools, win percentage does not significantly change applications; for Group of Five schools, it is associated with increased applications. [Wiley Online Library](#)
- Confidence: HIGH

NIL Compliance

O'Brien, T. (2022). Comply with NCAA guidance on NIL collectives, boosters. *College Athletics and the Law*, 19(3), 1–8. <https://doi.org/10.1002/catl.31036>

- Key finding: Discusses aftermath of NCAA v. Alston (2021) and NCAA deferral of NIL

regulation to states and schools. Wiley Online Library

- Confidence: HIGH

O'Brien, T. (2023). Know how to comply with new NIL rules issued by NCAA. *College Athletics and the Law*, 20(5). <https://doi.org/10.1002/catl.31203>

- Key finding: Addresses permissible conduct under various state NIL laws.
- Confidence: HIGH

Partially Verified Citations (Author/Journal Confirmed, Titles Incomplete)

O'Brien, T. (2021). [Title not confirmed]. *College Athletics and the Law*.
<https://doi.org/10.1002/catl.30941>

- DOI pattern consistent with 2021 CATL issues. Attribution plausible but specific title unconfirmed.
- Confidence: MEDIUM

McCarthy, C. (2022). [Title not confirmed]. *College Athletics and the Law*, 19.
<https://doi.org/10.1002/catl.31040>

- DOI numbering consistent with same volume as O'Brien (Vol. 19, Issue 3).
- Confidence: MEDIUM

McCarthy, C. (2022). [Title not confirmed]. *College Athletics and the Law*, 19.
<https://doi.org/10.1002/catl.31023>

- DOI numbering consistent with early 2022 issues.
- Confidence: MEDIUM

McCarthy, C. (2024). [Title not confirmed]. *College Athletics and the Law*, 21.
<https://doi.org/10.1002/catl.31370>

- A confirmed McCarthy 2024 article exists at catl.31318 ("NIL education can help ensure compliance, limit liability," Vol. 21, Issue 2). This DOI would be in a later 2024 issue.
- Confidence: MEDIUM

Unverified Citations (DOIs Not Found)

- Bowers (2025), *College Athletics and the Law*, DOI: 10.1002/catl.31417 — NOT FOUND
- Bowers (2025), *Campus Legal Advisor*, DOI: 10.1002/cal.41549 — NOT FOUND
- Elfman (2025), *Women in Higher Education*, DOI: 10.1002/whe.21592 — NOT FOUND (Note: Lois Elfman confirmed as contributor to Wiley higher education publications; her 2025 articles in *Ms. Magazine* on NIL gender equity are documented below)

- Forer & Mayne (2022), *Campus Legal Advisor*, DOI: 10.1002/cal.40928 — NOT FOUND
- McCarthy (2025), *College Athletics and the Law*, DOI: 10.1002/catl.31466 — NOT FOUND
- McCarthy (2025), *College Athletics and the Law*, DOI: 10.1002/catl.70001 — NOT FOUND
(Note: catl.70002 confirmed as “NCAA Update – 2025,” Vol. 22, Issue 9, suggesting this DOI exists in the same volume with new numbering)
- Confidence: LOW — All follow consistent Wiley DOI patterns for real publications, likely behind paywalls or too recent for web indexing. Direct CrossRef API or institutional access recommended.

Additional Academic Sources Discovered

Brook, S. L. (2025). Compensating college football players for their name, image, and likeness rights from live college football broadcasts. *Managerial and Decision Economics*, 46(4), 2381–2387. <https://doi.org/10.1002/mde.4465>

- Key finding: Median athletic department would pay ~5.4% of football media rights revenue to players; median football participant would receive **\$4,739** for broadcast NIL rights.

ResearchGate

- Confidence: HIGH

Agha, N., Berri, D., Brook, S., & Paulson, C. (2024). Exploitation in college sports: No longer just a “man’s game.” *Journal of Sports Economics*, 25(8). <https://doi.org/10.1177/15270025241279530>

- Key finding: Wage exploitation exists in college softball; many players generate more revenue in college than they’d earn as professional softball players (19,760 athletes from 294 universities, 2012–2021).

Sage Journals

- Confidence: HIGH

Li, I., & Derdenger, T. (2025). Does personalized pricing increase competition? Evidence from NIL in college football. *Management Science*. <https://doi.org/10.1287/mnsc.2024.06423>

- Key finding: NIL **increases** competitive balance by distributing talent more widely, especially among 5-star and lower-ranked 4-star recruits. Challenges the “rich get richer” narrative.

EurekAlert!

- Confidence: HIGH (top-tier journal)

Houston, A., Groothuis, P. A., & Guignet, D. (2025). Competitive recruiting imbalances between National Collegiate Athletic Association conferences. *Journal of Sports Economics*. <https://doi.org/10.1177/15270025251369420>

- Confidence: HIGH

Buzuvis, E. (2025). Title IX and athlete compensation in the postamateurism era. *Fordham Law Review*, 93, 1579–1601.

- Key finding: Title IX equal treatment requirements apply to NIL compensation.

Fordhamlawreview

- Confidence: HIGH

LeRoy, M. H. (2025). NCAA women athletes and NIL pay disparities: Are they students under Title IX, employees under Title VII, or both? *University of Cincinnati Law Review*, 93(4), 979.

- Key finding: Men’s basketball players in major conferences averaged **\$171,272** in NIL pay in 2024 vs. **\$16,222** for women’s basketball. Argues NIL pay disparities create Title IX liability.

Uc

- Confidence: HIGH

Rukstalis, L. (2023). Changing the game: The emergence of NIL contracts in collegiate athletics and the continued efficacy of Title IX. *Washington and Lee Journal of Civil Rights and Social Justice*, 29(4).

- Key finding: Male athletes receive ~74.35% of all NIL compensation; football and men’s basketball receive ~71.4% of all NIL deals and 93% of NIL donations.

Widener Law Commonwealth

- Confidence: HIGH

2. Market Data Findings

Total NIL Market Size by Year

Academic Year	Estimated Total	Collective	Commercial	Collegiate/Rev Share	Primary Source	Confidence
2021-22 (Year 1)	\$917M	\$321M	\$597M	\$0	Opendorse NIL at 3 (Jul 2024)	HIGH
2022-23 (Year 2)	\$1.14B	\$911M	\$229M	\$0	Opendorse; Front Office Sports (Jul 2022)	MEDIUM
2023-24 (Year 3)	\$1.17B	\$936M	\$234M	\$0	Opendorse NIL at 3; CNBC (Dec 2025)	HIGH

2024-25 (Year 4)	\$1.67B– \$1.9B	\$1.3B	\$957M	\$0	Opendorse NIL at 3; RallyFuel (Nov 2025)	HIGH
2025-26 (Year 5, proj.)	\$2.5B– \$2.75B	\$227M	\$995M	\$1.5B	Opendorse NIL at 4 (Jul 2025); CNBC	HIGH

Source: CleanKonnnect analysis of Opendorse NIL at 1–4 reports (July 9, 2025); nil-ncaa.com

Key structural shift in Year 5: Collective spending collapsed from **\$1.3B to \$227M** (–82%) as revenue sharing absorbed that function. Commercial NIL rebounded from \$234M to \$995M. The \$1.5B collegiate revenue-sharing category is entirely new. Cleankonnnect

Athlete earnings share by segment: Athletes receive ~29% of commercial NIL revenue, ~90% of collective NIL, and ~95% of collegiate/revenue-sharing payments (Opendorse NIL at 4 via CleanKonnnect).

NIL Distribution by Sport

Collective NIL Spending by Sport (Pre-Revenue Sharing):

Sport	% of Collective Spending	Source	Confidence
Football	72.2%	Opendorse via Reach Capital; Morgan Stanley	HIGH
Men's Basketball	21.2%	Same	HIGH
Baseball	~3% (3rd most compensated)	Opendorse NIL at 3	MEDIUM
Women's Basketball	2.3%	Reach Capital	MEDIUM
All Other	~1.3%	Derived	LOW

Revenue-Sharing Allocation (Power 4 schools, 2025-26):

Sport	% of Revenue Share	Source	Confidence
		CBS Sports citing Opendorse (Jul	

Football	65.6%	2025)	HIGH
Men's Basketball	20.3%	Same	HIGH
Women's Basketball	6.6%	Same	HIGH
All Other Sports	7.5%	Same	HIGH

Real-World Example — Texas Tech Revenue Sharing: Football 74% (\$15.1M), Men’s Basketball 17.5% (\$3.6M), Women’s Basketball 2% (\$410K), Baseball 1.9% (\$390K), All Other ~4.5% (\$920K). Source: Lubbock Avalanche-Journal via AthleticDirectorU.

Commercial NIL by Sport: Women’s basketball is **#2 behind football** in total commercial NIL compensation, leapfrogging men’s basketball for the first time in Year 3 (Opendorse NIL at 3, July 2024). Women’s basketball accounted for **10.2%** of all commercial NIL activity, surpassing men’s basketball at 8.6%.

Specific Athlete NIL Valuations

Athlete	Sport	School	NIL Valuation	Source/Date	Confidence
Arch Manning	Football	Texas	\$6.5M–\$7.1M	On3 (various 2025 snapshots)	HIGH
Livvy Dunne	Gymnastics	LSU (retired Apr 2025)	\$4.1M–\$4.2M	On3 (2025)	HIGH
Cooper Flagg	Men’s Basketball	Duke	\$4.2M–\$4.8M	On3 (2025)	HIGH
Carson Beck	Football	Miami	\$4.3M	On3 (2025)	HIGH
Jeremiah Smith	Football	Ohio State	\$4.0M–\$4.2M	On3 (2025)	HIGH
AJ Dybantsa	Men’s Basketball	BYU	\$3.8M–\$5.0M	On3 (2025)	HIGH
Flau’jae Johnson	Women’s Basketball	LSU	\$1.5M	On3 (Jan–Mar 2025)	HIGH
Paige Bueckers	Women’s Basketball	UConn	\$1.5M	On3 (2025)	HIGH

JuJu Watkins	Women's Basketball	USC	\$739K	On3 (2025)	HIGH
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Correction: The user-supplied Flau’jae Johnson valuation of \$1.6M appears to be slightly high; all sources consistently report **\$1.5M** on On3. Johnson’s total lifetime earnings (NIL + music) are self-reported at ~\$4.5M; Forbes estimates her net worth at \$7M.

Correction: Arch Manning’s valuation fluctuates between \$6.5M and \$7.1M across different On3 snapshots. The \$6.8M figure cited in the task falls within this range but no single source reports exactly \$6.8M.

Average and Median NIL Values

Metric	Value	Source	Confidence
All athletes — median total earnings	~\$500–\$713	NCAA NIL Dashboard (2024-25)	HIGH
All athletes — average total earnings	~\$21,331	NCAA NIL Dashboard	HIGH
Power 4 athletes — average	\$75,390	NCAA NIL Dashboard	HIGH
Power 4 athletes — median	\$3,180	NCAA NIL Dashboard	HIGH
Power 4 average deal value	\$10,477	NCAA NIL Dashboard	HIGH
Power 4 median deal value	\$500	NCAA NIL Dashboard	HIGH
More than half of all deals	\$100 or less	NCAA NIL Dashboard	HIGH
P4 MBB average per player	\$171,272	LeRoy (2025)	HIGH
P4 WBB average per player	\$16,222	LeRoy (2025)	HIGH
MBB average NIL (Aug 2024–Apr 2025)	\$53,643	Athlon Sports/Paint Touches	MEDIUM
Transfer athletes earn	1.7x more than non-transfers	Opendorse NIL at 3	HIGH
Agent-represented athletes earn	5.3x more than non-represented	Opendorse NIL at 3	HIGH

Expected Annual Earnings — Top 25 Athletes by Sport (Opendorse NIL at 3, 2024)

Sport	Top 25 Expected Annual NIL	Confidence
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Men's Basketball	~\$349,000	HIGH
Football	~\$294,000	HIGH
Women's Basketball	~\$89,000	HIGH
Baseball	~\$47,700	HIGH
Softball	~\$8,500	HIGH
Women's Volleyball	~\$5,900	HIGH

Key context: Top 25 WBB athletes earn ~\$89K — \$11K more than the 2023-24 WNBA median salary of \$78K (Opendorse via BusinessofCollegeSports.com).

3. NIL Go Clearinghouse Data

Data Point	Value	Source	Date	Confidence
Launch date	June 11, 2025	Multiple sources	2025	HIGH
Operator	Deloitte	Multiple sources	2025	HIGH
Total deals cleared (through Dec 31, 2025)	17,321 deals / \$127.21M	CSC announcement via Yahoo Sports/On3	Jan 12, 2026	HIGH
Deals NOT cleared	524 deals / \$14.94M	Same CSC announcement	Jan 12, 2026	HIGH
Deals in arbitration	10 deals	Same	Jan 12, 2026	HIGH
Reporting threshold	\$600+ for third-party NIL deals	Multiple sources	2025	HIGH
Deloitte estimate: past collective deals that would fail	~70%	nil-ncaa.com citing Athletes.org/Deloitte	2025	MEDIUM
Public company deal approval rate	~90%+ would pass	nil-ncaa.com citing Athletes.org	2025	MEDIUM

Estimated basketball-only third-party market	\$500M+	nil-ncaa.com	2025	MEDIUM
Early data correction	Initially reported \$80M (Jun–Aug); corrected to \$35.42M for 6,090 deals	Front Office Sports (Sept 2025)	Sept 2025	HIGH

Top reasons for deal denial: (1) Lack of valid business purpose, (2) No direct activation of athlete’s NIL rights, (3) Compensation not commensurate with similarly situated deals.

SportsEpreneur

Compliance gap: Only \$127M cleared through Dec 31, 2025 vs. an estimated \$500M+ third-party basketball market alone — strong indication of **significant non-compliance** with reporting requirements.

Nil-ncaa

Three-part compliance review process: (1) Payor Association status, (2) Valid Business Purpose, (3) Range of Compensation (12-factor FMV analysis including athletic performance, social media presence, market size, comparable deals).

2aDays

4. Regulatory and Legal Landscape Findings

House v. NCAA Settlement

Element	Detail	Confidence
Total damages	\$2.576B in direct damages (~\$2.8B including injunctive relief value)	HIGH
Final approval date	June 6, 2025 (Judge Claudia Wilken, N.D. Cal.)	HIGH
Preliminary approval	October 7, 2024	HIGH
Revenue-sharing cap Year 1	\$20.5M per school (22% of avg Power Five “Pool Revenue”)	HIGH
Cap growth	~4% annually; projected ~\$32.9M by 2034-35	HIGH
Roster limits (football)	105 (replaces 85 scholarship cap)	HIGH
Roster limits (MBB)	15 (up from 13)	HIGH
Roster limits (baseball)	34	HIGH
	95% to football/MBB/WBB in Power conferences; 5% to	

Back-pay allocation	all other	HIGH
Expected roster spots eliminated	~ 5,000 across 43 NCAA-sponsored sports	HIGH
Revenue-sharing effective	July 1, 2025	HIGH
Appeals	7 groups of athletes + 8 female athletes (Title IX); damages paused	HIGH
Payment structure	NCAA ~\$1.1B; Power Four conferences ~\$664M; other 27 DI conferences ~\$990M	HIGH
Payment period	10 years (2025–2035)	HIGH

Critical detail: Schools are NOT required to pay the full \$20.5M cap. If schools award scholarships beyond pre-House limits, up to \$2.5M counts against the revenue-sharing pool.

Nil-ncaa +2

Federal Legislation

SCORE Act (Student Compensation and Opportunity through Rights and Endorsements Act)

- Bill: H.R. 4312, 119th Congress
- Introduced: July 10, 2025 Morgan Lewis
- Sponsor: Rep. Gus Bilirakis (R-FL)
- Status: Passed House Energy and Commerce Committee (Jul 23, 2025) and Education and Workforce Committee; scheduled for floor vote week of Dec 1, 2025 but **stalled**. No full House vote completed as of March 2026.
- Key provisions: Codifies House framework; grants limited antitrust exemption to NCAA/CSC; **explicitly prohibits athlete employee classification**; preempts all state NIL laws; requires \$20M+ revenue schools to maintain ≥ 16 varsity sports; mandates athlete benefits (mental health, legal/tax, career counseling, post-eligibility medical).
- Support: NCAA, Power Four conferences (SEC ran national ads).
- Opposition: Democrats, some smaller schools, athlete advocates.
- Confidence: HIGH

SAFE Act (Student Athlete Fairness and Enforcement Act)

- Introduced: September 29, 2025 (Senate)
- Sponsors: Sens. Maria Cantwell (D-WA), Cory Booker (D-NJ), Richard Blumenthal (D-CT)

- Status: Introduced; no committee vote as of March 2026.
- Key provisions: Federal NIL rights; does NOT grant NCAA antitrust immunity; neutral on employment status; amends Sports Broadcasting Act for media rights pooling; requires schools to maintain 2023-24 roster/scholarship levels for women's and Olympic sports; 10-year scholarship guarantees; two penalty-free transfers; 5% agent fee cap; FTC and state AG enforcement; private right of action for athletes; preserves 22% revenue-share cap.

U.S. Senate Committee on Commer

- Support: NFL, NBA, NWSL players' associations.
- Opposition: NCAA (no antitrust protection); Big Ten and SEC (media rights pooling).
- Confidence: HIGH

Trump Executive Order — “Saving College Sports” (July 24, 2025)

- Prohibits third-party pay-for-play (permits legitimate FMV NIL deals) Teambuildr +2
- Revenue-sharing tiered framework: \$125M+ revenue schools must increase non-revenue sport scholarships; \$50M-\$125M must maintain current levels; <\$50M should not disproportionately reduce Saul Ewing LLP White House
- Directs DOL and NLRB to clarify athlete employment status Morgan Lewis Loeb & Loeb LLP
- Not legally binding; widely viewed as NCAA-friendly. NBC News
- Confidence: HIGH

College Sports Commission (CSC)

Element	Detail	Confidence
Established	June 6, 2025	HIGH
CEO	Bryan Seeley (former EVP Legal & Operations at MLB; former DOJ attorney)	HIGH
Staff size (Oct 2025)	~4 full-time employees (widely criticized as insufficient)	HIGH
Technology	NIL Go (Deloitte) + CAPS (College Athlete Payment System)	HIGH
Enforcement	Sole authority over settlement rule violations; neutral third-party arbitration for appeals	HIGH
Schools pay Deloitte	\$5,000–\$500,000 for NIL Go software	HIGH
Anonymous tip		

line	Launched for violation reporting	HIGH
Congressional scrutiny	Rep. Lori Trahan (D-MA) Oct 10, 2025 letter demanding answers on capacity, standards	HIGH

State law landscape: 32+ states and D.C. have enacted NIL laws with significant variation. NIL2

White House Both SCORE and SAFE Acts would preempt this patchwork. Baker Tilly Several states have laws conflicting with CSC arbitration mechanisms.

5. Gender Equity Data Points

Deal Volume and Dollar Distribution

Metric	Women	Men	Source	Confidence
% of top-100 athletes by deal count (2023-24)	52%	48%	SponsorUnited 2023-24	HIGH
Same metric, prior year (2022-23)	38%	62%	SponsorUnited	HIGH
Average brand deals per athlete	3.5	2.5	SponsorUnited via On3	HIGH
Athletes with 5+ NIL deals	24%	12%	SponsorUnited via On3	HIGH
Total NIL compensation share	~17-28%	~72-83%	Multiple (varies by definition)	HIGH
Collective NIL to female athletes	<3.5%	>96.5%	Opendorse NIL at 3	HIGH
Commercial NIL to female athletes	>15%	<85%	Opendorse NIL at 3	HIGH
Schools reporting: total \$ earned	\$19M	\$92M	Washington Post (Oct 2024)	HIGH

Critical nuance on “52%” figure: SponsorUnited’s data reports that among the top 100 most-endorsed athletes, women hold 52% of the deals. Fox Sports reported this as women “earning 52% of the money from those partnerships.” FOX Sports The distinction between deal count and dollar value is blurred in media reporting. Some sources (The GIST, On3) describe it as deal count. Confidence on deal count: HIGH; on dollar value: MEDIUM.

The collective vs. commercial paradox: Women dominate commercial NIL (brand endorsements, social media), but men dominate collective NIL (donor-driven, booster-funded).

Since collectives accounted for ~82% of total NIL in Year 4, men far outpace women in total dollars despite women's commercial success. This structural gap is the most important gender equity finding in the data.

Engagement Metrics

- Female athletes generate **4x total audience engagement** vs. male athletes SponsorUnited
- Female athletes generate **7x more engagement per deal** SponsorUnited
- Source: SponsorUnited. Confidence: HIGH

Title IX Legal Landscape

Biden DOE Guidance (Jan 16, 2025): 9-page fact sheet stating NIL compensation from schools constitutes "athletic financial assistance" under Title IX, subject to proportionality requirements. Even third-party collective payments could trigger obligations. Ogletree

Trump DOE Rescission (Feb 12, 2025): Rescinded Biden guidance as "overly burdensome, profoundly unfair." Trump administration position: Title IX does not apply to NIL deals. ESPN

House Settlement Title IX Challenge: Eight female athletes filed appeal to 9th Circuit (June 11, 2025) arguing back-pay formula violates Title IX — male athletes would receive ~90% of back-pay. Back-pay portion stayed pending appeal; expected to take ~2 years.

Revenue-sharing gender tension: Many schools direct majority of \$20.5M to football and men's basketball — often less than 5% to women's sports. ESPN Title IX applicability to third-party deals: does NOT directly apply to true third-party deals (DOE acknowledged), but school involvement in facilitating or promoting deals may trigger obligations. ESPN Ogletree

SCORE Act gap: Lacks any mention of Title IX or gender protections — deeply concerning to advocates.

Women's Sport-Specific Trends

- **Women's basketball:** Fastest-growing NIL sport; deals up 60% (2022-23); #2 in total commercial compensation behind football; expected annual earnings up 85% YoY.
 - **Gymnastics:** Livvy Dunne model (\$4.1M valuation, 13M+ social followers); 18% of women's NIL SponsorUnited deals.
 - **Volleyball:** 15% of women's NIL deals; players in top 100 doubled from 6 to 12 (2022-23); Alex Glover (SMU) activated 41 deals in 2023-24 (most of any NCAA athlete).
 - **Caitlin Clark effect:** 2024 Women's March Madness championship outdrew men's by 4M+ viewers; 2025 viewership down ~18-24% from peak but still up 17% over pre-Clark baseline; ESPN ad sales for Women's March Madness up 132%.
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6. Institutional and Competitive Balance Findings

NIL Collective Ecosystem

Data Point	Value	Source	Confidence
Total known collectives	120+	NYT investigation; collageandwood.com	HIGH
Power 5 schools with ≥1 collective	92%	iconsource.com	HIGH
SEC schools with ≥1 collective	100% (14/14)	iconsource.com	HIGH
Collective types	University-specific/booster, marketplace, brand-focused, nonprofit 501(c)(3), for-profit LLC	Multiple	HIGH
Power 4 average collective budget	\$13.9M (up 50% YoY)	Opendorse NIL at 3	HIGH
Group of 5 average	\$3.4M	Opendorse NIL at 3	HIGH
Other DI average	\$1.2M	Opendorse NIL at 3	HIGH

Note: The user-supplied figure of ~80 collectives appears to refer to “deeply invested” Power 5 collectives specifically, not total count. The broader count is 120+.

501(c)(3) Status Collapse: IRS Chief Counsel Memo (June 9, 2023) concluded NIL collectives generally fail nonprofit standards. IRS listed NIL collectives as FY2025 enforcement priority. October 2024 determination letter denied 501(c)(3) status to an NIL collective. Multiple collectives (BPS Foundation, Clemson’s TigerImpact) dissolved nonprofit structures. Loss of tax-deductibility expected to significantly reduce donor contributions.

Conference Roster Costs (Men’s Basketball, 2025-26)

Conference	Avg Roster Cost	Third-Party NIL	Revenue Sharing	Source	Confidence

SEC	\$9.7M	\$7.1M	\$2.6M	The Athletic survey via nil-ncaa.com	HIGH
Big 12	\$8.6M	\$4.4M	\$4.2M	Same	HIGH
Big Ten	\$8.5M	\$5.4M	\$3.1M	Same	HIGH
ACC	\$8.2M	\$4.1M	\$4.1M	Same	HIGH
Big East	\$8.0M	\$2.3M	\$5.7M	Same	HIGH
Mid-High Majors	\$2.3M	\$1.0M	\$1.3M	Same	HIGH
Low-Mid Majors	\$525K	\$100K	\$425K	Same	HIGH

Kentucky outlier: Reported **~\$22M basketball roster** — highest in college basketball history, averaging ~\$1.46M per player on 15-man roster. Drives SEC average up significantly. Confidence: HIGH (Lexington Herald-Leader, Bleacher Report, Front Office Sports, 247Sports, OutKick).

Football spending examples: Texas reportedly \$35-40M football roster (2025-26); Ohio State ~\$20M+ NIL; Texas A&M \$51.4M total athlete NIL revenue (Jul 2024–Jun 2025, nearly tripling YoY).

Transfer Portal as Price Discovery

- Transfer athletes earn **1.7x more** than non-transfer peers (Opendorse).
- Agent-represented athletes earn **5.3x more** (Opendorse).
- 1,500+ players entered during first week of winter portal window (2024-25).
- G5 → P4 talent drain accelerating: “We can’t offer more. We can only offer first...And most of the time, that’s not enough anymore” (anonymous G5 staffer, Athlon Sports).
- G5 starting WR making \$15K may receive \$75K+ P4 offers.

Financial Intermediaries and Predatory Practices

Big League Advance (BLA):

- Founded 2016 by former MLB pitcher Michael Schwimer.
- Model: Upfront cash for 1-10% of future professional earnings. ~450 minor leaguers signed; 100 reached majors.
- Expanded to college NIL: signed Georgia’s Nolan Smith and Clemson’s Myles Murphy (both first-round 2023 NFL Draft picks).

- Gervon Dexter lawsuit (2023, N.D. Florida) challenged “extended term provision” as speculative investment violating Florida NIL law.
- Raised hundreds of millions across three funding rounds.
- Confidence: HIGH

NILLY (Kendrick Perkins / Chris Ricciardi):

- Offers \$25K–hundreds of thousands upfront for exclusive NIL rights up to 7 years, receiving 10-50% of NIL earnings.
- Example: \$50K to high school senior → exclusive NIL for 7 years → NILLY receives 25% up to \$125K.
- Consumer finance experts: “predatory” — likened to high-interest loans (Chris Peterson, former CFPB adviser).
- 20 athletes signed as of October 2024 (all football/MBB).
- Confidence: HIGH

YOKE Gaming Platform:

- July 2021 (first week of NIL): Offered Iowa football players ~\$20 for social media posts.
- Contract granted “**perpetual, royalty-free, and irrevocable rights**” to use athletes’ content.
- Athletes unknowingly signed away lifelong image rights for \$20.
- Dan Lust (NYU Law): warned athletes against such contracts without legal review.
- Now claims to serve 120,000+ college athletes.
- Confidence: HIGH

Impact on Non-Revenue Sports

32 Division I Olympic sports programs cut since House settlement announced (per AVCA CEO Jaime Gordon, May 2025). Selected major cuts 2024-2025:

- Sonoma State: All 11 varsity teams eliminated (Jan 2025) — \$23.9M deficit
- Academy of Art University: All 13 sports eliminated (Apr 2025)
- Purdue Fort Wayne: Baseball and softball cut (\$6M budget reduction tied to revenue sharing)
- Cal Poly: Swimming & diving cut (Mar 2025) — blamed House v. NCAA revenue-share costs
- Utah: Women’s beach volleyball eliminated (Apr 2025)
- Grand Canyon: Men’s volleyball reverted to club (Apr 2025)

- UVA and NC State: Diving programs cut
- Seattle University: Men's tennis, indoor track cut

Structural driver: Power conference schools average ~\$55M+ net operating losses before revenue sharing. Revenue sharing adds ~~\$30M annually~~. ~~Non-revenue sport athlete average from revenue sharing: **\$4,495 per player**.~~

Revenue-sharing distribution imbalance: Football ~75% (\$15.4M), Men's basketball ~15% (\$3.1M), All other sports combined ~10% (\$2.05M) of the \$20.5M cap.

7. Gaps, Conflicts, and Data Quality Notes

Conflicting Data Points

1. **Total settlement amount:** Sources vary between "\$2.8 billion," "nearly \$2.8 billion," and "\$2.576 billion." The \$2.576B is precise direct damages; \$2.8B includes estimated injunctive relief value. RECOMMENDATION: Use "\$2.8 billion" with footnote explaining the \$2.576B direct damages figure.
2. **Revenue-sharing percentage:** Most sources say 22%; one source (CUPA-HR) says 22.5%. The 22% figure appears in settlement documents. RECOMMENDATION: Use 22%.
3. **SponsorUnited 52% figure:** Reported inconsistently as either 52% of deals or 52% of endorsement dollars among top 100. The distinction between deal count and dollar value is blurred across media sources. RECOMMENDATION: Describe as "52% of top-100 endorsement activity" and note the measurement ambiguity.
4. **Flau'jae Johnson valuation:** User supplied \$1.6M; all On3 sources report \$1.5M. RECOMMENDATION: Use \$1.5M.
5. **Arch Manning valuation:** Ranges from \$6.5M to \$7.1M depending on date. RECOMMENDATION: Use "approximately \$6.8M" as midpoint or specify the range.
6. **Opendorse projections:** Their 2023 projection of \$1.17B for 2025-26 was doubled to \$2.75B by 2025 — a 130%+ miss. Historical Opendorse projections should be cited with this caveat.
7. **NIL Go early data error:** CSC initially reported \$80M cleared (June-August 2025); corrected to \$35.42M due to Deloitte data labeling error. Later cumulative figure of \$127M (through Dec 31, 2025) appears stable.
8. **Number of collectives:** User supplied ~80; data shows 120+ total, with ~65 "deeply invested" Power 5 collectives. RECOMMENDATION: Use "more than 120 collectives" with note that ~65 Power 5 collectives are most active.

Data Gaps

1. **Coaching position eliminations:** No systematic data found. Evidence is anecdotal (position freezes, resignations). CONFIDENCE: LOW
2. **Graduate assistantship reductions:** No systematic data found. CONFIDENCE: LOW
3. **Elfman (2025) DOI verification:** The specific *Women in Higher Education* article (DOI: 10.1002/whe.21592) could not be verified through web search. However, Lois Elfman's 2025 *Ms. Magazine* articles on NIL gender equity are well-documented and cover similar themes.
4. **Precise breakdown of women's vs. men's total NIL dollar value:** Multiple methodologies yield different results (17% vs. 28% for women depending on whether collective, commercial, or both are counted). No single authoritative figure exists.
5. **NIL Go \$500M+ basketball market estimate:** Single-source estimate from nil-ncaa.com; not independently verified. CONFIDENCE: MEDIUM
6. **Detailed transfer portal spending by conference for football:** Conference-level data available for basketball (see tables above) but football equivalents are fragmented across program-specific reports rather than systematic surveys.
7. **Six unverified DOIs:** These Wiley trade publication articles are likely behind paywalls or too recent for web indexing. Institutional library access or direct CrossRef verification recommended.
8. **Peer-reviewed academic analysis of House v. NCAA:** No published journal articles analyzing the settlement in detail were found — most analysis comes from law firm white papers, Congressional reports, and law review student notes. The Ehrlich & Ternes (2025) ABLJ article covers related antitrust/labor law but not the settlement specifically.

Source Quality Assessment

Highest-quality sources used: Congress.gov CRS Reports, Opendorse annual reports (industry standard), SponsorUnited reports, NCAA NIL Dashboard, peer-reviewed journals (Management Science, Managerial and Decision Economics, Journal of Sports Economics, American Business Law Journal, Fordham Law Review, University of Cincinnati Law Review), ESPN investigative reporting, major law firm analyses (Crowell & Moring, Duane Morris, Steptoe, Morgan Lewis).

Medium-quality sources: nil-ncaa.com (useful data aggregation but less established), SportsEpreneur, 2adays.com, On3 NIL valuations (industry standard for valuations but proprietary methodology).

Sources requiring caution: Single-source estimates for NIL Go denial rates, basketball market size projections, and some coaching/GA reduction claims lack independent corroboration.

possible. Confidence levels assigned per protocol: HIGH = multiple corroborating sources; MEDIUM = single credible source; LOW = estimate or projection with limited verification.